

# Sukhnoor Singh vs Haryana Public Service Commission And ... on 10 July, 2024

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| Sr.<br>No | Petition<br>No.          | Case Title<br>/Petitioner(s)                                                          | Objection filed<br>against<br>Questions<br>after<br>publication of<br>Provisional<br>Answer Key | Objections<br>filed against<br>question<br>nos. after<br>uploading<br>final Answer<br>Key with<br>final Result |
|-----------|--------------------------|---------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------|
| 1         | CWP No.<br>8510-<br>2024 | Sukhnoor Singh Vs<br>Haryana Public<br>Service Commission<br>& Anr.<br>Sukhnoor Singh | Nil                                                                                             | 76<br>82                                                                                                       |
| 2         | CWP<br>10051-<br>2024    | Jayantika Dhull Vs.<br>HPSC and Ors.<br><br>Jayantika Dhull                           | Yes<br>67,74,119,123                                                                            | 67<br>74<br>76<br>82<br>119                                                                                    |

|    |                       |                                                                                                      |                     |                                                 |
|----|-----------------------|------------------------------------------------------------------------------------------------------|---------------------|-------------------------------------------------|
| 3  | CWP<br>10180-<br>2024 | Avinash Yadav Vs<br>HPSC                                                                             | Yes<br>74,87,90,122 | 123<br>74<br>87<br>90<br>122<br>69<br>119       |
| 4  | CWP<br>10154-<br>2024 | Avinash Yadav<br>Mohini Vs HPSC<br><br>Mohini                                                        | Yes<br>123          | 37<br>67<br>74<br>82<br>87<br>107<br>119<br>123 |
| 5  | CWP<br>10748-<br>2024 | Palak VS HPSC &<br>Anr.<br><br>Palak                                                                 | Nil                 | 73<br>74<br>76<br>82<br>120<br>123              |
| 6  | CWP<br>9908-<br>2024  | Amandeep Sheoran<br>Vs. State of Haryana<br>& Ors.<br>Amandeep<br>Sheoran                            | Nil                 | 82                                              |
| 7  | CWP<br>10873-<br>2024 | Amanpreet Kaur Vs.<br>State of Haryana and<br>Ors.<br>Amanpreet Kaur                                 | Nil                 | 37<br>76<br>107                                 |
| 8  | CWP<br>9174-<br>2024  | Aashina Gupta &<br>Anr. Vs. State of<br>Haryana and Others<br>1. Aashina Gupta<br>2.Vasudha Aggarwal | Yes<br>74           | 74<br>82                                        |
| 9  | CWP<br>9179-<br>2024  | Mahesh Priya Vs.<br>HPSC & Ors.<br><br>Mahesh Priya                                                  | Nil                 | 63<br>72<br>74<br>82<br>87<br>107<br>119<br>123 |
| 10 | CWP<br>10042-<br>2024 | Lavita Garg Vs. State<br>of Haryana & Ors.<br><br>Lavita Garg                                        | Yes<br>123          | 107<br>119<br>123                               |
| 11 | CWP<br>8890-          | Rohit Vs State of<br>Haryana & Ors.                                                                  | Nil                 | 82<br>107                                       |

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| 12 | CWP<br>10795-<br>2024 | Rohit<br>Rahul Gautam Vs.<br>State of Haryana &<br>Ors. | Nil | 63<br>74<br>76<br>82<br>107<br>119..... | B<br>B<br>B<br>A<br>B<br>..... |
|    |                       | Rahul Gautam                                            |     | .....                                   | .....                          |

13 CWP Hemant Vs. HPSC & Yes 74 B No Change 9854- Anr. 74 76 B B to C .

2024

|    |               |                                                      |                       |          |        |
|----|---------------|------------------------------------------------------|-----------------------|----------|--------|
|    |               |                                                      |                       | 82<br>63 | A<br>B |
| 14 | 9273-<br>2024 | Hemant<br>Robin Sharma & Ors.<br>Vs. Vs. HPSC & Anr. | Yes<br>63,67,87,123,7 | 63<br>67 | B<br>D |

1.Robin Sharma 4 74 B No Change 1. 384 (Gen.)

2. Chinki Rani 82 A A to D 2. 381.6 (Gen.)

3.Ayushi Saxena 87 A No Change 3. 384 (Gen.)

4. Amandeep 107 B Deleted 4. 386.4 (Gen.)

5. Waris Aggarwal 119 B B to C 5. 387.2 (Gen.)

6. Rohan Mittal 122 A No Change 6. 386.4 (Gen.)

7. Pragya Yadav 123 C No Change 7. 387.2 (Gen.)

8. Aastha Rana 8. 380 (Gen.)

9. Akhilesh Kumar 9. 383.2 (Gen.) Mishra

10. Mohammad 10. 384 (Gen.) Sultan

11. Sakshi Mangla 11. 386.4 (Gen.)

12. Gaurav Arya

13. Medha Mishra 12. 386.4 (Gen.)

14. Sunil 13. 374.4 (Gen.)

15. Shivam Goyal 14. 386.4 (Gen.)

16. Ashmin goel 15. 385.6 (Gen.)

17. Kartik Goyal 16. 383.2 (Gen.)

18. Prerna 17. 388 (Gen.)

19. Renuka 18. 379.2 (Gen.)

19. 312 (BC-A)

20. Vibhav Khanna 20. 384 (Gen.)

21. Yeshika Goyal 21. 376.6 (Gen.)

22. Ustat Kaur

23. Rupali 22. 383.2 (Gen.)

24. Honey Wadhwa 23. 384 (Gen.)

25. Shivam Malik 24. 370.4 (Gen.)

25. 381.6 (Gen.) 15 CWP Shahnaz Bano vs Yes 69 B B to D 10898 - HPSC & Anr. 76,90 72 A A to C 2024 107 B Deleted Shahnaz Bano 119 B B to C 360.8 (BC-B) 16 10992- Anu Bala Vs. HPSC & Nil 74 B No Change 2024 Anr. 87 A No Change 107 B Deleted Anu Bala 386.4 (Gen.) 17 10895- Akhil Goyal Vs. Yes 24 A No Change 2024 Punjab & Hry High 64,120,124 64 A No Change Court & Anr. 82 A A to D 107 B Deleted 120 C No Change Akhil Goyal 124 C No Change 373.6 (Gen.) 18 CWP 1. Puneet Gupta Yes 63 B No Change 11287- & Anr. Vs. HPSC & 74,82,123 69 B B to D 2024 Anr. 74 B No Change 82 A A to D 87 A No Change 107 B Deleted 119 B B to C

1. Puneet Gupta 122 A No Change 1. 377.6 (Gen.)

2. Gulveer Kaur 123 C No Change 2. 385.6 (Gen.) 19 CWP Mahima Tayal Vs. Yes 74 B No Change 11257- HPSC & Ors. 74,94,123 82 A A to D 2024 94 A No Change Mahima Tayal 123 C No Change 383.2 (Gen.) 20 CWP Agampartap Singh Nil 82 A A to D 11423- Vs. HPSC & Ors. 107 B Deleted Agampartap Singh 386.4 (Gen.) 21 CWP Umang Gupta Vs. Yes 52 A A to C 11088- HPSC & Anr. 72,76 107 B Deleted 2024 119 B B to C Umang Gupta 382.4 (Gen.) 22 CWP Richa Tayal Vs State Yes 69 B B to D 10902- of Haryana & Ors. 87,123 82 A A to D 2024 87 A No Change 107 B Deleted Richa Tayal 123 C No Change 381.6 (Gen.) 23 CWP Amardeep Singh Vs. Nil 67 D No Change SANJAY KHAN 13729- Registrar Recruitment 69 B B to D 2024 & Anr.

|    |                        |                                                                                                     |                       |  |                                                      |
|----|------------------------|-----------------------------------------------------------------------------------------------------|-----------------------|--|------------------------------------------------------|
|    |                        | 12954-<br>2024                                                                                      | & Anr.                |  | 82<br>107                                            |
| 25 | CWP<br>13376-<br>2024  | Shiv Jindal<br>Rahul Verma Vs.<br>HPSC & Anr.                                                       | Yes<br>63             |  | 63<br>72<br>74<br>119                                |
| 26 | CWP<br>13552-<br>2024  | Rahul Verma<br>Aanchal Verma Vs.<br>HPSC & Anr.                                                     | Nil                   |  | 123<br>72<br>82<br>123                               |
| 27 | CWP<br>12874-          | Aanchal Verma<br>Vijay Vs. HPSC                                                                     | Yes<br>63,74,76,90,12 |  | 63<br>107                                            |
| 28 | CWP<br>12790-<br>2024  | Vijay<br>Prerna Goel Vs.<br>Punjab and Haryana<br>High Court & Ors.                                 | Yes<br>123            |  | 76<br>107<br>123                                     |
| 29 | CWP<br>14992-<br>2024  | Prerna Goel<br>Varun Girdhar Vs.<br>State of Haryana &<br>Ors.                                      | Nil                   |  | 69<br>76<br>87<br>123                                |
| 30 | CWP<br>13223-<br>2024  | Varun Girdhar<br>Veerpal Kaur & Ors.<br>Vs. State of Haryana<br>& Ors.                              | Nil                   |  | 74<br>107                                            |
| 31 | CWP<br>11984-<br>2024  | 1. Veerpal Kaur<br>2. Simran<br>3. Shubhit Trehan<br>Vishawanath Partap<br>Singh Vs. HPSC &<br>Anr. | Nil                   |  | 37<br>63<br>67<br>69<br>82<br>87<br>90<br>107<br>119 |
| 32 | CWP<br>9772 of<br>2024 | Vishawanath Partap<br>Singh<br>Abhinandan Sagar<br>Vs. HPSC & Anr.<br>Abhinandan Sagar              | Nil                   |  | 69<br>82<br>107                                      |

| Sr.<br>No. | Questions in dispute<br>(As per master copy) | Petitioners Claim |
|------------|----------------------------------------------|-------------------|
|------------|----------------------------------------------|-------------------|

1 24. Which Section of IPC was struck down by the Supreme Court in Joseph Shine v. Union of India (2019) 3 SCC 39 ? A) Section 497 IPC B) Section 377 IPC C) Section 124A IPC D) None of the above CWP No. 10895 of Petitioner mentioned that answer of A The petitioner has not challenged Hon'ble 2024 Q.No. 24 was changed in the Final this Question. In fact this question is Committee not Answer Key, whereas, petitioner appearing in the Master Copy of changed the marked correct answer as per Question Paper at Sr. No. 69. The answer at any provisional answer key. Challenged on Question has been dealt with at stage and the ground that position nominee Hindu relevant Sr. No. the relevant place. remained 'A'. Succession Act is not covered and cited Thus, there is no objection or SANJAY KHAN the judgment of Hon'ble Supreme Court challenge to the aforesaid question.

titled as "Shakti Yajdani Vs Jayanand Salgaonkar and Anr."

2 37 37. Which out of the following cases is not / related with LGBTQ + Rights or Same Sex Marriage? A) Nabam Rebia Case (2016) B) K. S. Puttaswamy Case (2017) C) Navjet Singh Johar Case (2018) D) Shafin Jahan vs Ashokan K. M. Case (2018) CWP Nos. Claim : A The perusal of the judgments shows Hon'ble 10154, 1. Both the options A and B should be the following: Committee after 10873, correct as neither the case relates to deliberating the 12954 and same sex marriage nor LGBTQ rights. A) Nabam Rebia Case (2016) recommendatio 11984of Option D also is the correct answer. relates to the power of Governor to ns of the Expert 2024 2. The question strictly asks which of summon, dissolve and advance a Panel and the following case is not related to Session. objections, LGBTQ + Rights or Same Sex resolved to Marriage, Shafin jahan v Ashokan K.M B) K. S. Puttaswamy Case (2017) delete the case (2018) is primarily a case dealing relates to validity of Aadhar Card question being with the issue of right to marry a person and right to privacy including sexual ambiguous. of one's own choice and right to chose orientation but does not talk about religion. Not even for a single time, the LGBTQ or same sex marriage. Hon'ble Supreme Court has touched the aspects of same sex marriage nor C) Navjet Singh Johar Case (2018) LGBTQ+ Rights in this particular case. relates to LGBTQ+ rights. Therefore, option D also is the correct answer. D) Shafin Jahan vs Ashokan K.M. Case (2018) relates to inter-faith marriage.

Only option C deals with rights of LGBTQ and the answer could be A or B or D. Therefore, the objection is tenable and the official answer key is incorrect.

Accordingly, the Panel recommends the deletion of this question.

3 52 52. Identify the first Indian to be appointed as a permanent judge at the International Court of Justice at Hague:

A) Nagendra Singh B) Justice Dalvir Bhandari C) Benegal Narsing Rau D) Justice P.N. Bhagwati CWP No. Claim: A The official website of ICJ as well as Hon'ble 11088 of The official website of ICJ as well as the the website of Ministry of External Committee 2024 website of Ministry of External Affairs, Affairs, Government of India shows examined the Government of India shows that Sir that Sir Benegal Nursing Rau (1887- entire report of Benegal Nursing Rau was the first 1953) was the first Indian who the Expert Indian who became permanent Judge became permanent Judge of ICJ in Panel and of ICJ In the year 1952-53, whereas Sri the year 1952-53, whereas Sri objections and Nagendra Singh was the first Indian to Nagendra Singh (1914-1988) was recommended be the president of ICJ from 1985-1988. the first Indian to be the president of the answer ICJ from 1985-1988, though he option of this remained judge from 1973-1988. question from The perusal of the factual option 'A' to 'C' information from the official website clearly indicates that the objection is tenable and the panel recommends the correction of the answer key from Option 'A' to option 'C'.

Thus, the correct Answer should be option C. 4 63 63. Which out of the following Sections of the Hindu Succession Act, 1956 mentions about the order of succession among heirs in the schedule? A) Section 6 B) Section 8 C) Section 7 D) Section 12 CWP Nos. Claim: B The perusal of the provisions of the Committee 9179, 1. This question should be deleted Hindu Succession Act, 1956, Resolved not to 10795, since none of the option is correct. The provides the following: change the 9854, question is about 'Order of succession Official Answer 9273, among heirs in the schedule' and the Section 8 of the Hindu Succession Key in respect 11287, same is provided under section 9 of Act, 1956, deals with general rules of this question 13376, Hindu Succession Act 1956. The head of succession in the case of male and answer in 12874 and note of Section 9 of Hindu Succession Hindu dying intestate and provides the final answer 11984 of Act 1956 clearly refers to the other for the devolution of his property on key is B. 2024 Order of Succession among heirs in the Class 1 and Class II heirs specified Schedule. At the most, the answer in the Schedule. Thus it specifically should be option D i.e. section 12 mentions the succession among because this is much more similar to heirs in the Schedule. section 9.

Section 12 deals with Order of

2. The Hindu Succession Act, 1956 Succession among agnates and mentions about the order of succession cognates and does not fit in the among heirs in the schedule under answer. Section 9 of the Act. However, Section 6 is close to the framing of question Section 6 deals with Devolution of dealing with general rule of succession interest in coparcenary property and among males as well as females, after does not provide for the order of the amendment of 2005, so they are succession, whereas Section 7 also heirs now in the coparcenary deals with devolution of interest in property. So the answer is A. the property of a tarward, tavazhi, kutumba, kavaru or illom and is not applicable Section 9 of the Act provides 'Order of succession' 'among heirs in the Schedule'.

Sections 6, 7 and 12 don't refer to the Schedule at all. The analytical skills, reasoning and aptitude of the candidate are to be tested. The best option out of the available options was to be opted for. All

other options do not deal with the question posed.

Therefore, the objection is not tenable and the official answer key is correct.

5 64 64. What is the effect of impotency developed during subsistence of a Hindu marriage?

A) The marriage would remain valid B) The marriage would be void C) The marriage would be voidable D) The marriage shall stand annulled CWP No. Claim: A The analysis by the Panel is as Hon'ble 10895 of 1. Section 12, prior to its amendment in follows: Committee 2024 1976, stated that for a marriage to be Resolved not to voidable the respondent had to be 1. Before 1976, Section 12 (1) (a) of change the impotent at the time of the marriage and Hindu Marriage Act, 1956 reads as: Official Answer continued to be so until the Institution of Key in respect proceeding. But By the Amending Act of "12(1) any marriage solemnized, of this question 1976 the substituted clause emphasizes whether before or after the and answer in the element of non-consummation of commencement of this Act, shall be the final answer the marriage owing to the impotence of voidable and may be annulled by a key is 'A'. the respondent. Now this ground can be decree of nullity on any of the taken irrespective of time whether he following grounds namely:- (a) that was impotent at the time, before or after the respondent was impotent at the Marriage. Clause (a) of Sub-section (1) time of the marriage and continued of Section 12 makes it clear that a to be so until the institution of the marriage solemnized is voidable at the proceeding;"

instance of either party on the ground of non-consummation of the marriage due 2. After the Marriage Laws to the Impotence of the other party to (Amendment) Act of 1976, Section the marriage and may be annulled by a 12 (1) (a) of HMA reads as follows:

decree of nullity of marriage. Hence, now after 1976 Amendment, even if a "12(1) any marriage solemnized, husband has turned impotent during the whether before or after the subsistence of marriage, It would render commencement of this Act, shall be the marriage voidable as marriage now voidable and may be annulled by a cannot be consummated owing to decree of nullity on any of the impotency. following grounds namely:-

2. The effect of impotency developed (a) that the marriage has not "During Subsistence of Hindu Marriage. consummated owing to impotence Impotency is of two types 1) mental and of the respondent, or"

2) physical. Barrenness and sterility will not come under the purview of 3. A large number of citations were impotency. Impotency means incapacity put forth by the objectors. The to have normal sexual intercourse. So if analysis of those citations is as a person refuses to have sex, does not follows- means he or she is impotent but if he or she constantly refuses "during (1)In Citation 'Yuvraj Digvijay Singh subsistence" of marriage to have sexual v. Yuvrani Pratap Kumari' [AIR 1970 intercourse, then as per the Supreme SC 137], the decree of nullity was Court verdict in Urmila Devi vs. not granted as Section 12 (1) (a) of Narinder Singh AIR 2007, the said party HMA was the



ground. The citation is psychologically impotent and the relates to pre-amended Act i.e. marriage has not been consummated. before 1976.

"During subsistence" in question does not shows how long and at what extent. (ii) The Citation Shakuntala v. Om Therefore, the option (C) voidable as Prakash (AIR 1981 Del. 53) is also per section 12(1)(a) and option (A) is not applicable as the same relates valid. Both the options (c) as well as to pre-amended Act i.e. before 1976.

(a) are correct.

3. The answer is given in section 12 of "The Hindu Marriage Act 1955", and also in the book of "Modern Hindu law written" by Dr. U.P.D. Kesari, Central

Law Publication on page no. 108. However, the ground of impotency was claimed and allowed by the

4. As per Supreme Court Judgments, court as one of the forms of 'cruelty' Impotency will be considered as Cruelty as envisaged under Section 13 (1) to the other party, so, it also makes a (i-a).

new ground for taking a divorce under section-13 of the Act. If Marriage is not (iv) The Citation Jyotsnaben Ratilal consummated because of Impotency vs Pravinchandra Tulsidas (AIR then the other party have right to claim 2003 GUJ 222), is also not Decree of Nullity under Section-12(1)(a) applicable as impotency under of The Hindu Marriage Act, 1955. The Section 12 was in question but not PDF is taken from during the subsistence of marriage.

"legalserviceindia.com" which shows The Impotency of wife was pleaded cases where Impotency is ground of as the same resulted into non- nullity of Marriage and nowhere restricts consummation of marriage since the it only to the "at the time of Marriage" solemnization of the marriage. and it also nowhere given in the statute.

The marriage consummated is at any (v) The Citation P. v. K. (AIR 1982 time of marriage, even impotency Bom. 400), is also not applicable as developed at the later stage of Marriage the same relates to pre-amended and parties are now not able to Act i.e. before 1976. consummate the marriage. It was dealt in cases of Susarla Subhramanya (vi) The Citation Samar Roy Sastry Vs. S. Padmakshi, and, Yuvraj Chowdhary Vs. Sm, Snigdha Roy. Digvijay Singh v. Yuvrani Pratap Kumari (Cal), is also not applicable as the [3] on 2 May, 1969 and Samar Roy same relates to pre-amended Act Chowdhary Vs. Sm. Snigdha Roy. i.e. before 1976.

5. The impotency is not to be checked (vii) The Citation 'Urmila Devi v at the time of marriage, but at the time Narinder Singh' AIR 2007 (HP), Is of consummation of the

marriage. This also not applicable as impotency has been held in the cases of under Section 12 was in question *Shakuntala v. Om Prakash* (AIR 1981 but not during the subsistence of Del. 53) and in the case of *P. V. K.* (AIR marriage. The impotency of wife 1982 Bom. 400). was pleaded as the same resulted into non-consummation of marriage

6. According to Law Commission since the solemnization of the Report No. 59 of 1974, para 6.3, a marriage.

crucial recommendation was made regarding the amendment of Clause Section 12 specifically deals with 12(1)(a) of the Hindu Marriage Act the grounds of voidable marriage 1955, concerning impotence. The and no ground can be added Commission highlighted a significant therein. Even otherwise, the gap in the law: cases where an authorities cited above are individual wasn't impotent at the time of distinguishable as the same do not marriage but became so when hold impotency developed during attempting consummation the subsistence of a marriage under for the first time. Citing the precedent of the Hindu Marriage Act, 1956 to be *Ravanna v. Susheelamma*, AIR 1967 a ground for voidability of a Hindu Mys 165, the Commission advocated marriage. for a revision of Section 12(1)(a) to encompass situations where impotence Thus, the objections are not tenable arises after marriage. Thus, it was and the official answer key is proposed that the clause "at the time of correct. marriage" be revised to "the marriage has not been consummated owing to the impotence of the respondent. This recommendation found resonance in the 1976 amendment to the Hindu Marriage Act through Act 68 of 1976, specifically under Sub-section (6) (effective from 27-5-1976).

Consequently, the amendment substituted Section 12(1)(a) of the Hindu Marriage Act, 1955 as the "marriage has not been consummated owing to the impotence of the respondent" which aligned with the Law Commission's proposal, making impotence developed after marriage, leading to non-

consummation, a ground for voidability.

Therefore, the answer to this question unequivocally stands as option C.

7. Additionally, in the case before the Gujarat High Court in *Jyotsnaben Ratilal vs Pravinchandra Tulsidas* (AIR 2003 GUJ 222) provides that impotency developed after marriage is voidable, at Para 25, quotes as follows:

"25. S.12, prior to its amendment in 1976, stated that the respondent was impotent at the time of the marriage and continued to be so until the institution of proceeding. By the Amending Act of 1976 the substituted clause emphasizes the element of non consummation of the marriage owing to the impotence of the respondent. Medical evidence may establish that the petitioner wife has remained a virgin and the Court

may presume that the requirements of the SANJAY KHAN amended clause are satisfied. Clause

(a) of Sub-section (1) makes it abundantly clear that a marriage solemnized whether before or after the commencement of the Act is voidable at the instance of either party on the ground of non consummation of the same due to the impotence of the other party to the marriage and may be annulled by a decree of nullity of marriage. The marriage of a female with a male who was impotent and who had not been able to consummate the marriage is a nullity." C.

6 67 67. When a marriage has been dissolved by a decree of divorce under Hindu Marriage Act, 1955, and no appeal has been preferred, the divorced persons may marry again:

A) After expiry of 1 month from the decree of divorce B) Immediately after passing of the decree of divorce C) After expiry of 2 months from the decree of divorce D) After expiry of 90 days from the decree of divorce CWP Nos. Claim: D 1. Section 28 of the Hindu Marriage Hon'ble 10154, 1. In Anurag Mittal v. Shally Mittal (2018 Act, 1955 (for short, "HMA") deals Committee 9273, SC) the Hon'ble SC held that the party with appeals from decree and Resolved not to 13729 and can get married even when the time of orders passed under this Act. change the 11984 of appeal has not expired provided the Section 28(4) provides that every Official Answer 2024 parties have an intention that no appeal under the section shall be Key in respect proceedings should be continued in preferred within a period of 90 days of this question appeal and in the question it is written from the date of decree or order. and answer in no appeal is preferred that shows that This period of 90 days was the final answer party is not intending to continue with substituted by Act 50 of 2003, in key is 'D'.

the proceedings. Hence the parties can place of period of 30 days to prefer remarry immediately after the divorce appeal; decree.

2. Section 15 of HMA provides as to As per Para 19 of the same, it is clearly when the divorced persons may mentioned that no appeal has been marry again but does not mention preferred after decree of divorce, which any time period which is clearly means the proposition is covered by the mentioned in section 28(4); above cited precedent. The court also referred to the judgment of Leela Gupta 3. There is no option as versus Lakshmi Narayan. The question 'immediately after the lapse of the is not clear and therefore both the period of appeal'; answers B and D are correct.

2 Section 15, Hindu Marriage Act, 1955, 4. The citations particularly Anurag prescribes "no fixed period" which has Mittal vs Shaily Mishra Mittal (2018) to be observed or waited by the parties. (SC), dealt with a rare situation in If no appeal is preferred, the parties to which one party entered into second the marriage may re-marry "any time" marriage, after the compromise was after the pronouncement of decree of effected between both the parties divorce. regarding withdrawal of appeal which was fixed for hearing/listing in

3. When decree has been passed and the subsequent month, without no appeal has been preferred then factual withdrawal of appeal, though marriage can be solemnized application for withdrawal on the immediately after divorce as held in the basis of a written settlement, was latest case of Seema Devi v. Ranjit already filed. In this case, the Kumar Bhagat (2023 SC) para 29 which appeal was filed and was pending, states in terms of section 15 HMA, but the question relates to a case in either party to marriage is well within his which no appeal has been or her right to marry when the time for preferred. So the judgement is not filing appeal has expired without an applicable. appeal, having been preferred, or an appeal has been presented, but the 5. So far as the authorities Lila same has been dismissed. The bar or Gupta v. Laxmi Narain and Ors. Impediment to contract a second [(1978) 3 SCC 258], Chandra marriage operates during the pendency Mohini Srivastava v. Avinashi P. of appeal only if an appeal is preferred Srivastava, Seema Devi v. Ranjit within the limitation period not Kumar Bhagat (2023 SC) are otherwise. concerned, they have never held that the parties can re-marry

4. The Hon'ble Supreme Court of India immediately after the passing of clearly reiterated in Chandra Mohini decree of divorce without waiting for Srivastava v. Avinashi P. Srivastava the appeal to be filed and decided or case that it may not be unlawful for the for the lapse of period granted for spouse to marry Immediately after filing appeal under Section 28. passing of decree If no appeal has been preferred. In fact, the objectors failed to comprehend the ratio of the judgments. The Judgments never intended to destroy or dilute the plain wording and the legislative intent behind the provisions of Section 15 of the Act. If the reasoning of the objectors is considered on its face value, it will lead to wiping out Section 15 from the enactment. Moreover, in the problem in hand, no appeal was preferred, whereas, in the cited authority (Anurag Mittal), the appeal was pending at the time of contracting of second marriage by the husband.

Thus, the objections are not tenable and the official answer key is correct.

7 69 69. What is the position of a nominee under the Hindu Succession Act, 1956?

A) Nominee retains the amount or property received under nomination and is thus entitled to it B) Nominee is entitled to receive the amount or property but holds it as a trustee C) A nominee is equivalent to the heir or legatee with regard to the property or amount under nomination D) None of the above CWP Nos. Claim: B The objectors have proposed option Hon'ble 10898, The petitioners/objectors contend that D or C to be correct answer. In so Committee 11287, the concept of "nominee" has not been far as Option C is concerned, it is examined the 10902, dealt with under the Hindu Succession totally incorrect and is accordingly entire report of 13729, Act 1956, and his position is governed ruled out. The Panel has, however, the Expert 14992, by other laws. Some of the objector examined the stand of the objectors Panel and 11984 and equate nominee to an heir or legatee proposing Option D. The common objections and 9772 of stand adopted by the objectors is recommended 2024 that there is no provision under the the answer Hindu Succession Act, 1956 option of this regarding nominee and it is dealt question from with under the general principle, option 'B' to 'D' whereas the frame of question is to find out the position of the nominee under the Hindu Succession Act, 1956. The Panel is of the considered view that the objection of the objectors is tenable. The position of the nominee is not dealt with at all under the Hindu Succession Act 1956

and is governed by provisions in other laws. Since the frame of question is such that Option D is the best option.

8 72 72. The 'Dissolution of Muslim Marriages Act, 1939' is based on the following school of Muslim Law:

A) Hanafi School B) Shafi School C) Maliki School D) Zaidi School CWP Nos. Claim: A Almost all the objectors have relied Hon'ble 9179, The petitioners/objectors by relying on upon the statement of objects and Committee 10898, the statement of objects and reasons of reasons appended to Dissolution of examined the 13376, 'Dissolution of Muslim Marriages Act, Muslim Marriages Act, 1939 which entire report of 13552 of 1939' contend that it is based on Maliki is being reproduced herein:- the Expert 2024 School. "There is no provision in the Hanafi Panel and code of Muslim Law enabling a objections and married Muslim Woman to obtain a recommended decree from the Court dissolving her the answer marriage in case the husband option of this neglects to main her, makes her life question from miserable by deserting or option 'A' to 'C' persistently maltreating her or absconds leaving her unprovided fro and under certain other circumstances. The absence of such a provision has entailed unspeakable misery of innumerable Muslim women in British India. The Hanafi Jursists, however, have clearly laid down that in cases in which the application of Hanafi Law causes Hardship, it is permissible to apply the provisions of the "Maliki, Shafi's of Hambali Law" Acting on this principle the Ulemas have issued fatwas to the effect that in cases enumerated in clause 3 Part A of this Bill (now see Section 2 of the Act) a married Muslim woman may obtain a decree dissolving her marriage. A lucid exposition of this principle can be found in the book called "Heelatun Najeza" published by Maulana Ashraf Ali Sahib who has made an exhaustive study of the provisions of Maliki Law which under the circumstances prevailing in India may be applied to such cases. This has been approved by a large number of Ulemas who have put their seals of approval on the book."

Reading of the statement of objects and reasons indicates that the provision of aforesaid Act are based upon Maliki School in as much as Hanafi School did not provide for dissolution of Muslim marriage at the instance of the wife. In the aforesaid view of the matter, the official answer key is incorrect.

Thus the Panel recommends the change in the official answer key from Option A to Option C. 9 73 73. In which of the following cases, a firm is compulsorily dissolved?

A) By the happening of any event which makes it unlawful for the business of the firm to be carried on B) By the death of a partner C) By the adjudication of a partner as an insolvent D) All of the above CWP No. Claim: A The Panel finds the objections to be Committee 10748 of The petitioner/objectors propose option untenable. Section 41(a) has been Resolved not to 2024 D to be the correct answer. The omitted by Act 31 of 2016 and change the objectors have relied upon Section 41 Section 42(c) of the Act operates Official Answer

(a) and Section 42 (c) of the Indian subject to contrary contract between Key in respect Partnership Act, 1932 in support of their the partners. The question is based of this question objection. on Section 41 asking the candidate and answer in to identify the situation in which the the final answer firm is compulsorily dissolved. key is 'A'. Section 41(b) covers the situation and out of the given options, option A is the correct answer. In view of the above the Panel rejects the objections to the aforesaid question. Thus the official answer key is correct.

10 74 74. The provisions of Haryana Urban (Control of Rent and Eviction) Act, 1973 are applicable to the land given on lease for:

A) Residential purpose B) Business or trade purpose C) Both A) and B) D) None of the above CWP Nos. Claim: B The reading of the question Committee 10180, The petitioners/ objectors propose indicates that candidate was Resolved not to 10154, Option C to be the correct answer by required to identify the purpose of change the 10748, relying on the definitional clause and the land given on lease for the Official Answer 9174, Section 13 of the 'Haryana Urban applicability of Haryana Urban Key in respect 9179, (Control of Rent and Eviction) Act, (Control of Rent and Eviction) Act, of this question 10795, 1973'. The official answer is B. 1973. The question is based upon and answer in 9854, Section 2 (f) of the Act which the final answer 9273, defines 'rented land' to mean any key is 'B'.

10092, land let separately for the purpose 11287, of being used principally for 11257, business or trade. Mere omission of 13376, word 'rented' prior to land does not 12874 and change the nature of the question, 13223 of as is being contended by the 2024 objectors, because land given on lease is mentioned in the question.

Moreover, the thrust of the question is to Identify the purpose of leasing out the land for being governed by the provisions of the Haryana Urban (Control of Rent and Eviction) Act, 1973. The reliance being placed upon Section 2(d) which defines 'non-residential building by the objectors, is fallacious. The panel finds the objections to be not tenable.

Thus the official answer key is correct.

11 76 76. Can a tenant who sublets a building or rented land be considered a landlord under the Act, 1973? A) No, only the primary property owner qualifies as a landlord B) Yes, a tenant who sublets is considered a landlord for the sub tenant C) Only if the tenant has the explicit consent of the original landlord D) Only if the tenant has ownership rights in the property CWP Nos. Claim: B The question is as to whether a Hon'ble 8510, The petitioner/objectors propose option tenant who sublets a building or Committee 10051, C to be the correct answer. They have rented land can be considered as a examined the 10748, relied upon the definitional clause of landlord. The definition of landlord entire report of 10873, The Haryana Urban (Control of Rent & under Section 2(c) of the Haryana the Expert 10795, Eviction) Act, 1973 and the Division Urban (Control of Rent & Eviction) Panel and 9854, Bench judgment rendered in the case Act, 1973 includes a tenant who objections and 14992, Paramjit Singh Walia versus Jagdish sublets any building or rented land recommended 12874 &

Mittar etc. Civil Revision No. 2521 of in the manner hereinafter provided. the answer 12790 of 1987 (O&M) Date of decision The question as to whether a tenant option of this 2024 19.09.2015. who sublets any building or rented question from land without the written consent of option 'B' to 'C' the landlord can be considered as a landlord within the ambit of Section 2 (c) has been considered by the Division Bench in the aforesaid case holding that a tenant who sublets any building or rented land without the consent of the landlord, is not a landlord within the meaning of Section 2(c) of the Act. It further lays down that where a sub tenant to whom the tenant has sublet any building or a rented land without any written consent of the landlord, does not fall within the meaning of tenant in Section 2 (h) and accordingly, such a tenant cannot maintain an action for eviction under Section 13 of the Act. Thus the panel finds the objection to be worthy of acceptance. Option C is the most appropriate/best option to the question Accordingly, the panel recommends the change in the official answer key from option B to option C. 12 82 82. Under Order VII Rule 11(d) CPC, which of the following situations does not fall within the ambit of "barred by law"?

A) Order II Rule 2 and Res Judicata B) Jurisdiction C) Limitation D) All of the above CWP Nos. Claim: A The panel examined the objections. Hon'ble 9854, The petitioners/ objectors have Reading of the question indicates Committee 9273, proposed option D to be the correct that a candidate is required to examined the 10895, answer. Principally they contend that identify the situations which are not entire report of 11287, the questions of limitation and res- covered by VII Rule 11 (d) CPC. the Expert 11257, judicata are mixed questions of fact and The official answer is option A. Panel and 10902, law. They have relied on certain However, on examination of the objections and 12954, judgments in support of their cited judicial precedents by the recommended 11423, contentions holding that the questions objectors as well as other material, the answer 11984, of limitation and Res Judicata are mixed a question of limitation and res option of this 8510, question of fact and law and plaint judicata in many situations is a question from 10051, cannot be rejected under Order VII Rule mixed question of fact and law option 'A' to 10154, 11 (d) CPC. They further contend that requiring adjudication and the plaint 'D'. 10748, plaint can be rejected being barred by cannot be rejected under Order VII 9908, law only if it appears from the reading of Rule 11 (d) CPC. In respect of 9174, the plaint. Some of the objectors option B, the plaint is required to be 9197, contend that the question carries more returned under Order VII Rule 10 8890, than one correct answers and thus, it CPC. Thus, the best option out of 9772, should be deleted. the given options is Option D i.e. all 10795 and of the above. The Panel does not 13552 of subscribe to the demand of some of 2024 the objectors to delete the question in as much as option D appears to be most appropriate answer. It is not a case where more than two answers or none is possible In view of the above, the panel recommends the change of official answer key from Option A to Option D. 13 87 87. The expression 'Cause of action' denotes :

A) A bundle of essential facts necessary for the plaintiff to prove B) An important subject of litigation C) A point in question D) All of the above CWP Nos. Claim: A The Panel has examined the Committee 10180, The petitioners/objectors propose objections. The frame of the Resolved not to 10154, Option-D to be the correct answer. They question indicates that it asks about change the 9179, have also relied on certain judgments the meaning of expression 'cause of Official Answer 9273, which are as follows:- ABC Laminart (P) action'. The Panel has examined the Key in

respect 10992, Ltd. V. A.P Agence 1989 2 SCC 163, judgments relied on by the objectors of this question 11287, Church of as well as the authoritative and answer in 10902, Christ Charitable Trust and Educational commentaries on the subject the final answer 14992 and Charitable Society Vs. Ponniamman wherein it is defined as 'the bundle key is 'A'.

11984 of Educational Trust, (2012) 8 SCC 706, of the essential facts necessary for 2024 Rajiv Modi v. Sanjay Jain and ors. 2009 the plaintiff to prove'. Out of the SC, Para21 and Shanti Devi v. Union of given options, the most India, 2020 SC, Para 13 in support of appropriate/best option is Option-A their reasoning. which is also the official answer to the question. The reasoning adopted by the objectors is based on extrapolation which is impermissible. It is further trite to state that judgements cannot be read like statutes. Option C is completely ruled out as cause of action is not a point in question. It at the most approximates to the issue in a suit. Similarly Option B' an important subject of litigation', does not tantamount to 'cause of action'. In the aforesaid view of the matter the objections are found to be untenable and accordingly rejected. Thus the official answer key is correct.

14 90 90. Which of the following statements relating to CPC is incorrect?

A) The Code deals with procedures relating to Courts of Civil Judicature B) The Code deals with some substantive rights C) The Code is also a penal enactment dealing with punishments and penalties D) None of the above is incorrect CWP Nos. Claim: C The Panel has examined the Committee 10180, The Petitioners/objectors propose objections and found those to be Resolved not to 12874 and option D to be the correct answer. The untenable. The CPC enacted in change the 11984 of main plank of their reasoning is that 1908 consolidated and amended the Official Answer 2024 CPC provides penalties in certain laws relating to the procedure of the Key in respect provisions. In this context they have Courts of civil judicature. The of this question relied upon Section 32, Section 58, preamble of the code proclaims its and answer in Section 74, Order 39 Rule 2-A of CPC. object. It in essence is a procedural the final answer They contend that the statements given law for civil cases. It is also not a key is 'C'. in Option-B and C are also correct and penal enactment dealing with therefore Option-D should be the punishments and penalties. The correct answer. objectors are reading the statement given in Option C out of context by co-relating it with the cited provisions. The statement given in Option C declares CPC to be a penal enactment which is patently incorrect. In the aforesaid view of the matter the objections raised to the question are rejected.

Thus the official answer key is correct.

15 94 94. Where any property is ordered to be sold by public auction in execution of a decree, which of the following is false regarding the proclamation of the intended sale?

A) Such proclamation can be drawn up without giving notice to the decree-holder and the judgment-debtor B) Such proclamation shall state the time and place of sale C) Such proclamation shall specify any encumbrance to which the property is liable D) Such proclamation shall state



whether the property to be sold would be sufficient to satisfy the decree CWP No. Claim: A The Panel has examined the Committee 11257 of The petitioner/objectors rely on Order objections and found those to be Resolved not to 2024 21 Rule 66 (2) (a) contending that the untenable. The question is covered change the words 'such part' are omitted in the by Order 21 Rule 66 CPC. The Official Answer statement given in Option D. reading of the question indicates Key in respect that a candidate is required to find of this question out false statement given in the four and answer in options. Out of the given options the final answer only the statement given in Option-A key is 'A'. is false in as much as it is in contradiction to Order 21 rule 66(2) of CPC. It stipulates that proclamation shall be drawn up after notice to the decree holder and the judgment debtor Statements given in all other options i.e. B, C and D are correct in terms of Order 21 rule 66(2) of CPC. In view of the above, the objections are untenable.

Thus the official answer key is correct.

16 95 95. "A" is charged with travelling in a train without a ticket:

A) The burden of proving that he did not have the ticket is on the prosecution B) The burden of proving that he did not have the ticket is on the party who asserts it C) The burden of proof is on railway authorities D) The burden of proving that he had a ticket is on him CWP No. Claim: B The Panel has examined the Hon'ble 12874 of The petitioner/objectors have relied objections raised to the question. Committee 2024 upon illustration (b) to section 106 of Reading of the question indicates examined the Indian Evidence Act, 1872. that the statement has been given entire report of and a candidate is required to find the Expert out on whom the burden of proof Panel and lies. On examination of the objections and statement given in the question, the recommended Panel finds it to be directly covered the answer by illustration-(b) appended to option of this Section 106 of Indian Evidence Act, question from 1872 and the burden of proof that option 'B' to he had a ticket with him lies on him. 'D'.

The official answer key provide Option-B to be the correct answer which stipulates that burden of proving that he did not have the ticket is on the party who asserts it. If it is a case of criminal charge, in that case Option A, B and C are on the same line; Le. the burden of proving that he did not have the ticket will be on the prosecution or complainant Le Railway authorities. Thus Options A, B and C appear to be incorrect and the most appropriate/best option is Option-D which is proposed by the objectors.

In view of the above, the Panel recommends the change of answer key from Option B to Option D. 17 107 107. What does Section 93 of the Indian Evidence Act primarily addresses in relation to documents? A) Admission of extrinsic evidence to explain any type of ambiguity B) Exclusion of evidence to explain or amend ambiguous documents C) Admission of evidence to interpret all types of ambiguities D) Exclusion of evidence for any document with defects CWP Nos. Claim: B The Panel has examined the 10873, The petitioners/ objectors propose objection. Section 93 of the Hon'ble 9179, option-D to be also the correct answer. Evidence Act stipulates that where Committee after 10042, The reasoning adopted by the objectors the language used in documents is deliberating

the 8890, is that Section 93 Evidence Act deals ex-facie ambiguous or defective, recommendatio 10795, with both ambiguous as well as extrinsic evidence is not permitted to ns of the Expert 9854, defective documents and therefore supply its defects or indicate/supply Panel and 9273, options B and D are correct. its meaning. Reading of the objections, 10898, question indicates that a candidate resolved to 10992, is required to find out the application delete the 10895, of Section 93 in the relation to question being 11287, documents. It has already been ambiguous.

11088, noticed above that it excludes giving 10902, of extrinsic evidence to explain or 12954, amend ambiguous and defective 9772, documents. The Options-B and D 12790 and co-incide/concur with the principle 13223 of laid down in Section 93 of the 2024 Evidence Act. Even though the statement given in Option-D does not indicate the purpose for exclusion of evidence yet it is not wholly incorrect in the context of Section 93 of Evidence Act, 1873. In view of the above, the Panel finds the objection to be tenable. The Panel is of the view that both Options B and D are correct.

It, accordingly, recommends that Options B and D be taken to be correct answer of the question.

18 119 119. 'X' sends an insured parcel to 'Y'. The parcel is not delivered. 'Y' :

A) cannot claim the amount from the insurance company because there is no privity of contract B) can enforce as a constructive trust is created in his favour C) can enforce only if there is an express provision in the contract that he can enforce it D) none of the above is correct CWP Nos. Claim: B The Panel has examined the Hon'ble 10180, The petitioners/ objectors propose objections. The gist of the reasoning Committee 10154, option 'D' to be the correct answer. The adopted by the objectors is that no examined the 9197, reasons assigned are that enforcing a constructive trust is created in entire report of 10042, constructive trust is typically a legal favour of 'Y/recipient and further on the Expert 10795, remedy used in cases where one party account of operation of principle of Panel and 9854, holds property, including funds or privity of contract, 'Y' cannot claim objections and 9273, assets, for the benefit of another party. the amount of Insurance from the recommended 10898, Constructive trusts are often invoked in Insurance Company unless it is the answer 11287, situations where there is a breach of specifically provided by the terms of option of this 11088, trust or unjust enrichment. In the the contract itself. The Panel finds question from 11984 and context of a non-delivered insured the objections to be tenable. option 'B' to 13376 of parcel, enforcing a constructive trust Reading of the question indicates 'C'.

2024 might not be a standard or direct that it contains a terse statement remedy. Constructive trusts are more without further details. The contract commonly associated with property and is between X and the Insurance assets, rather than specific goods or Company. It is not specified for parcels. However, the specific legal whose benefit it was taken out. The remedies available to Y may depend on terms of the contract are not the nature of the transaction, applicable specified. It cannot be stated as a laws, and the terms of the contract. If Y general rule that a contract of believes that there is a breach of trust insurance is an exception to the or unjust enrichment, they may need to principle

of privity of contract. A lot explore legal avenues such as breach depends on the terms of the of contract, consumer protection laws, contract. It is doubtful that a or specific provisions related to the constructive trust is created in delivery of goods in their jurisdiction. In favour the consignee in an some cases, a court may order specific insurance contract Insuring a parcel. performance, damages, or other In the context of the question and remedies based on the circumstances. the given options, the Panel is of the Some of the objectors propose options considered view that Option. C is 'A' and 'C' as well based upon the the most appropriate answer. It, above reasoning. accordingly, recommends change in the official answer key from option B to option C. 19 120 120. A, who is a minor borrows money from B. After becoming an adult, he repays the amount of the loan and after some days he institutes a suit against B for the recovery of the money so repaid. Which one of the following options is correct as to the result of a suit? A) A will succeed in recovering money B) A will not succeed in recovering money as the minor's contract is illegal C) A will not succeed in recovering money as repayment was valid D) None of the above CWP Nos. Claim: C The Panel has examined the Hon'ble 10748 and The petitioners/ objectors have objections and finds the same to be Committee 10895 of proposed option 'A' to be the correct untenable. The objections are based Resolved not to 2024 answer. The gist of the reasoning is that on misreading of the question. change the a minor's contract is void ab initio and Perusal of the question Indicates Official Answer thus no ratification is possible. They that a minor after attaining the Key in respect have relied upon the following majority has voluntarily repaid the of this question judgments in support of their objections amount of the loan and after some and answer in

(i) Mohiri Bibee vs. Dharmodas Ghose days he instituted a suit against 'B' the final answer 1903 PC for recovery of the money so repaid. key is 'C'.

(ii) Suraj Naraian V. Sukhu Aheer The proposition is squarely covered

(iii) Khan Gul vs Lakha Singh by the judgment of Tukaram Ramji

(iv) Mathai Mathai v. Joseph Mary Shend्रे v. Madhorao Manaji (2014) AIR SCW 2793 and Krishnaveni Bhangе AIR 1948 Ngp 293, holding v. □□ Shagul Hameed (2024) arising that in such a situation, the question out of SLP(C) No. 23655/2019, decided of ratification does not arise and the on 15th February, 2024. payment made must be regarded as a gift.

They further relied upon Sections 68 and 72 of the Indian Contract Act, 1872. Further a reference may also be made to page 252 of Pollock and Mulla The Indian Contract Act, 1872' 16th Edition, 2022 Lexis Nexis. As regards the cited precedents, none of the precedent is applicable to the proposition given in the question. It is beyond a pale of controversy that a minor's agreement is void ab initio and it is not capable of ratification even after attaining majority and a fresh consideration is required to support a promise made on attaining majority. However, in the instant case, the question is not of ratification of agreement made during minority. It is a case of voluntary repayment of the money on attaining majority by a minor. In view of the above, the Panel is of the considered opinion that the objections raised by the objectors are liable to be rejected.

Thus the official answer key is correct.

20 122 122. What type of contract is created when one party makes a promise in exchange for the other party's performance?

A) Bilateral contract B) Unilateral contract C) Executed contract D) Void contract CWP Nos. Claim: A The Panel has examined the Hon'ble 9273, The petitioners/ objectors propose objections and finds the same to be Committee 11287, option C and 'B' to be the correct untenable. Perusal of the question Resolved not to 12874 and answers. They contend that it is a case Indicates that the candidate has change the 10180 of of executed contract and it is unilateral been asked to identify the type of Official Answer 2024 in nature. They also placed reliance on contract created in the given Key in respect the following judgments:- situation. It states that if one party of this question

1. Union of India Vs. Chaman Lal Loona makes a promise in exchange for and answer in 1957 AIR 652, 1957 SCR 1039 the performance of other party, then the final answer

2. Alka Bose versus Parmatma Devi, what would be the type of contract key is 'A'. 2009(2) SCC 589 created between the parties. The

3. Sri Krushna Chandra Sahu v. The official answer key is option 'A' i.e. Managing Director, Ocard Bank Ltd bilateral contract.

4. Ram Narain Damodar Dass Malpani vs Trilokidas and Ors. Raj High Court In the proposition, the contract is 1981 between two parties. It envisages situation when one party makes They also relied upon Excerpts from promise in exchange for the Book "Contract and Specific Relief 12th performance of other party. Thus, Edition by Avtar Singh (EBC there is an exchange of promises Publications). between both the parties to be performed in future. The proposition does not specify the nature of the promise i.e. act to be performed by either of the parties. Thus options 'B' and 'C' are ruled out and Option 'A' is the correct answer. The Panel has also examined the cited judicial precedents and those are inapplicable to the factual situation given in the question. The quoted passage in Chaman Lal's case pertains to executed and executory considerations.

In Alka Bose case, the Hon'ble Supreme Court has quoted "The Law of Contract (4th Edition) by John De Calamari and Joseph M Perillo which defines unilateral contracts to be a gratuitous promise, that is where only one party makes promise without a return promise.

However, in the given proposition, there is exchange of promises. In view of the above, the Panel is of the considered opinion that the objections raised by the objectors are liable to be rejected.

Thus the official answer key is correct.

21 123 123. Which of the following propositions is correct as regards a contingent contract?

A) The contract will not be contingent if the happening or non-happening of the contingency depends upon the will of a party B) The condition/contingency must be of a certain nature C) The contingency contemplated by the contract must be collateral to the contract D) All of the above CWP

Nos. Claim: C The Panel has examined the Hon'ble 10154, The petitioners/objectors propose objections and finds the same to be Committee 10748, option D' to be the correct answer. The untenable. Perusal of the question Resolved not to 9179, objectors also place reliance on the indicates that the candidate is change the 10042, judgment P.O Balayya v. K.V. required to identify the correct Official Answer 9273, Srinivasayya Setty & Sons proposition in respect of a Key in respect 11287, (AIR 1954 SC 26). They have also contingent contract. Options 'A', 'B' of this question 11257, relied upon Sir Dinshaw Fardunji Mulla, and 'C' contain statement relating to and answer in 10902, Page number 591. a contingent contract. In this the final answer 13376, respect, the statement contained in key is 'C'.

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option 'A' is incorrect for the reason that a condition in a contingent contract may be subject to an event which depends upon the will of the parties to the contract or of a 3rd party. In this respect, a reference may be made to page 547 of Pollock and Mulla "The Indian Contract Act, 1872 16th Edition 2022 Lexis Nexis.

As regards the statement contained in option 'B' that condition/contingency must be of a certain nature is also incorrect inasmuch as the contingency may be of uncertain nature.

In view of the above, only option 'C' is correct and options 'A' and 'B' are Incorrect. Thus, option 'D' is ruled out. The objectors are quoting the judicial precedents and authoritative text out of context. Section 32 of the Indian Act, 1872 itself stipulates that a contingent contract to do or not do anything, if an uncertain event happens, cannot be enforced by law unless and until that event has happened. Similarly, Section 33 relates to enforcement of contingent contract which depends upon the non-happening of uncertain future event. Section 34 visualizes a situation when contingency depends on a future event relating to the act of a person. In view of the above, the Panel finds the objections to be untenable and liable to be rejected. Thus the official answer key is correct.

22 124 124. What is the effect of Section 17 (1A) inserted by The Registration and Other Related Laws (Amendment) Act, 2001 in the Registration Act, 1908? A) Registration of agreement to sell has been made mandatory B) Registration of agreement to sell is mandatory only if it evidences delivery of possession C) Registration of agreement to sell is mandatory, if the proposed purchaser wants to seek protection U/S 53A of the Transfer of Property Act, 1882 D) None of the above CWP No. Claim: C The Panel has examined the Hon'ble 10895 of The petitorner/objectors propose option objections and finds the same to be Committee 2024 'A' to be the correct answer. The untenable. The objections are based Resolved not to reasoning by the objectors is that upon the misreading of the question change the Section 17 (1A) of the Registration Act as well as the mis-construction of Official Answer which has been incorporated by way the statutory provision. Section 17 Key in respect amendment makes the registration of (1A) which has been added by the of this question an agreement to sell mandatory. Registration and Other Related and answer in Laws (Amendment) Act, 2001 the final answer stipulates that the documents key is 'C'. containing contracts to transfer

for consideration, any immovable property for the purpose of S. 53A of the Transfer of Property Act, 1882 (4 of 1882) shall be registered if they have been executed on or after the commencement of the Registration and Other Related Laws (Amendment) Act, 2001 (48 of 2001) and if such documents are not registered on or after such commencement, then, they shall have no effect for the purposes of the said S. 53A of Transfer of Property Act.

A reference may be also made to the judgments in the case of Didar Singh vs. Nasib Kaur, 2012 (2) Civ CC 428 (P&H), R. Palanisubramanian vs. Trans Medica (India) Ltd. And others, AIR 2009 Mad 110, Ameer Minhaj vs. Dierdre Elizabeth (Wright) Issar and Ors. 2018 (7) SCC 639 and R. Hemalatha vs. Kashthuri, AIR 2023 SC 1895, 2023 (2) CCC 6 holding that only disability attached to such an unregistered document is that it shall not be considered for availing the benefit of Section 53-A of Transfer of Property Act, 1882.

Thus, the Panel is of the considered view the objections raised are untenable and are liable to be rejected.

Thus the official answer key is correct.